4923

Executive Order

Article XXXI of the Consular Regulations, 1896, "Customs Regulations", is hereby canceled and the following substituted:

ARTICLE XXXI

Entry of Merchandise into the United States

654. Canceled.

655. Canceled.

656. Canceled.

657. Certified invoices required.—The general rule is that a consular invoice shall be obtained for merchandise to be imported into the United States; but there are certain exceptions to this rule provided by law. (*Tariff Act of 1922, Secs. 484, 498.*)

658. Canceled.

659. Canceled.

660. Canceled.

661. Canceled.

662. Preparation of invoices:—

(*a*) *Language.*—The invoice may be prepared in English or in the language of the country of exportation. (*E. O. May 28, 1914; T. D. 34542.*)

(*b*) *Number of copies.*—The invoice must be prepared in triplicate. (*Tariff Act of 1922, Sec. 482c; T. D. 38026.*)

(*c*) *Paper and writing.*—All invoices must be prepared on firm, durable paper, in legible and permanent characters.

663. Invoice to be for single shipment.—An invoice shall include only one shipment of merchandise from one consignor to one consignee or firm of consignees, by the same vessel. (*Cust. Reg. 1923, Art. 253.*)

664. Forms.—Since the information to be shown in the invoice for merchandise shipped in pursuance of a purchase or an agreement to purchase differs in some important respects from that required for merchandise shipped otherwise than in pursuance of a purchase or agreement to purchase, two forms have been prescribed by the Secretary of the Treasury, namely, Form 138 for purchased merchandise and Form 139 for merchandise not purchased.

665. Canceled.

666. Canceled.

667. Canceled.

668. Declaration.—Consular invoices shall have indorsed thereon when produced to consular officers for certification a verified declaration in a form prescribed by the Secretary of the Treasury, stating whether the merchandise is sold or agreed to be sold, or whether it is shipped otherwise than in pursuance of a purchase or an agreement to purchase, that there is no other invoice differing from the invoice so produced, and that all the statements contained in such invoice and in such declaration are true and correct. (*Tariff Act of 1922, Sec. 482-b.*)

669. Contents of Invoices.—The data to be set forth in consular invoices shall be that prescribed by law and by the Secretary of the Treasury.

670. Canceled by Executive Order of May 28, 1914.

671. Canceled by Executive Order of May 28, 1914.

672. By whom signed.—Every certified invoice shall be signed by the seller or shipper, or the agent of either. (*Tariff Act of 1922, Sec. 482-c.*)

673. Powers of attorney.—The evidence to be required to establish agency, when an agent signs the invoice, is for the determination of the consul.

674. Statement of cost of production sometimes required.—Under such regulations as the Secretary of the Treasury may prescribe, the Collector or the Appraiser, at the port of entry may require a verified statement from the manufacturer or producer showing the cost of production of imported merchandise, when necessary to the appraisement of such merchandise. (*Tariff Act of 1922, Sec. 484-g.*)

675. Canceled.

676. Canceled.

677. Production of invoice to consul.—Invoices shall, at or before the time of the shipment of the merchandise, or as soon thereafter as the conditions will permit, be produced for certification to the consular officer of the United States:

(*1*) For the consular district in which the merchandise was manufactured, or purchased, or from which it was to be delivered pursuant to contract;

(*2*) For the consular district in which the merchandise is assembled and repacked for shipment to the United States, if it has been purchased in different consular districts. (*Tariff Act of 1922, Sec. 482-a.*)

678. Canceled.

679. Certification when no consul of the United States.—When merchandise is to be shipped from a place so remote from an American consulate as to render impracticable certification of the invoice by an American consular officer, such invoice may be certified by a consular officer of a nation at the time in amity with the United States, or if there be no such consular officer available, such invoice shall be executed before a notary public or other officer having authority to administer oaths and having an official seal. (*Tariff Act of 1922, Sec. 482-f.*)

680. Canceled.

681. Canceled by Executive Order of June 1, 1907.

682. Market value:

(*a*) Wherever employed *in these regulations* the words "value" and "market value" shall be understood to mean the foreign value or the export value, whichever is higher.

(*b*) The *foreign value* of imported merchandise shall be the market value or the price at the time of exportation of such merchandise to the United States, at which such or similar merchandise is freely offered for sale to all purchasers in the principal markets of the country from which exported, in the usual wholesale quantities and in the ordinary course of trade, including the cost of all containers and coverings of whatever nature, and all other costs, charges and expenses incident to placing the merchandise in condition, packed ready for shipment to the United States. (*Tariff Act of 1922, Sec. 402.*)

(*c*) The *export value* of imported merchandise shall be the market value or the price, at the time of exportation of such merchandise to the United States, at which such or similar merchandise is freely offered for sale to all purchasers in the principal markets of the country from which exported, in the usual wholesale quantities and in the ordinary course of trade, *for exportation to the United States*, plus, when not included in such price, the cost of all containers and coverings of whatever nature, and all other costs, charges, and expenses incident to placing the merchandise in condition, packed ready for shipment to the United States. If in the ordinary course of trade imported merchandise is shipped to the United States to an agent of the seller, or to the seller's branch house, pursuant to an order or an agreement to purchase (whether placed or entered into in the United States or in the foreign country), for delivery to the purchaser in the United States, and if the title to such merchandise remains in the seller until such delivery, then such merchandise shall not be deemed to be freely offered for sale in the principal markets of the country from which exported for exportation to the United States, within the meaning of this sub-division. (*Tariff Act of 1922, Sec. 402.*)

683. Canceled.

684. Samples.—Upon the request of any collector or appraising officer, the consul will procure and forward to such collector or appraiser samples of any merchandise imported or offered for importation into the United States from his consular district.

685. Canceled.

686. Examination of invoice and consular notations:

(*a*) When the invoice is received by the consul it is his duty to examine it carefully and to satisfy himself that all the data required by Paragraph 669 are clearly and, so far as he may determine, correctly set forth.

(*b*) The consul will also satisfy himself that the person who signed the invoice is the person he represents himself to be.

(*c*) If it should appear from an examination of the invoice that the data given therein will not, for any reason, enable the appraiser in the United States to arrive at the true market value of the merchandise, the consul should state, on a separate sheet, a copy to be attached to each copy of the invoice, such facts as he believes the appraiser may desire to consider in addition to or in connection with the data already given in the invoice.

(*d*) If the consul believes that the price paid or to be paid for the merchandise is not correctly stated in the invoice, or that the name of the seller or any other required information has not been given correctly, he may call for the bills of sale. These should be returned, however, after inspection by the consul.

(*e*) When any invoice is accepted for certification under the provisions of subdivision 2, Paragraph 677, the original bills or invoices received by the shipper, or extracts therefrom, showing the actual prices paid or to be paid for the merchandise, must be and remain attached to the invoice, and the certifying consular officer may require that any such original bill or commercial invoice be certified by the consular officer for the district in which the merchandise was purchased. (*Tariff Act of 1922, Sec. 481–c.*)

687. Canceled.

688. Certification of the invoice.—When the invoice has been duly examined and any needful precautions have been taken to insure that the customs officers will be in possession of all facts necessary to a proper examination, classification and appraisement of the merchandise, the certifying officer should affix his signature and the seal of his office to that part of the printed invoice form designated as the "Consular Certificate".

689. Canceled.

690. Incomplete and fraudulent invoices.—Invoices that do not set forth clearly all the information required by the law and regulations should not be certified. (*See also subdivision c, Paragraph 662.*) The consul will decline to certify any invoice which he knows to contain a false statement, but where the consul is not sure of the falsity of the invoice, he should certify it and follow the procedure set forth in subdivision c, Paragraph 686. Invoices covering merchandise the importation of which into the United States is prohibited, must not be certified.

691. Replace invoices.—Consular officers should be constantly on the alert for substitute or "replace" invoices advancing the values or otherwise materially changing the statements in the original invoice.

692. Canceled.

693. Disposition of invoices.—The several copies of the invoices shall be distributed in the manner prescribed by law and in accordance with such rules as may be established from time to time by the Department of State.

694. Canceled.

695. Fees.—The fees to be collected by consular officers for the certification of invoices will be set forth in the Tariff of United States Consular Fees. (*R. S., Sec. 1716: 9, 34 Stat. 101.*)

696. Canceled.

697. Extra copies of invoices.—A copy of any original invoice on file in the consular office may be supplied at any time to the person or firm for whom the invoice was certified.

698. Answering inquiries as to tariff, customs laws and regulations.—In replying to the inquiries frequently made by exporters and travelers concerning the customs laws and regulations, consuls will be most careful not to give or appear to give decisions in matters upon which they are not competent to pass, such as the classification, i. e. dutiability, of an article or the marking thereof.

699. Canceled.

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719. Marking of articles and packages to indicate country of origin.—All *articles* of foreign manufacture or production, which are capable of being marked, stamped, branded, or labeled, without injury, at the time of their manufacture or production, must be marked, stamped, branded, or labeled, so as to indicate the country of origin in legible English words, in a conspicuous place that shall not be covered or obscured by any subsequent attachments or arrangements. Said marking, stamping, branding, or labeling must be as nearly indelible and permanent as the nature of the article will permit. (*Tariff Act of 1922, Sec. 304.*)

If any *article* is found upon examination not to be marked to indicate the country of origin it shall not be delivered until so marked at the importer's expense; and, unless exported under customs supervision, in addition to the regular duty imposed by law on such article, there shall be paid a duty of 10 per cent of the appraised value thereof, which includes all dutiable charges, or if such article is free of duty, a duty of 10 per cent of the appraised value thereof. (*Tariff Act of 1922, Sec. 304.*)

All *packages* containing imported articles must be marked to indicate the country of origin, and also to show the quantity of their contents. If any package is not so marked it is not delivered until properly marked under customs supervision at the importer's expense. (*Cust. Reg. 1923, Art. 471.*)

720. Consular officers and customs representatives to cooperate.—Consular officers will confer freely with customs representatives abroad regarding the market value and invoicing of merchandise invoiced through their offices. These representatives have no authority to instruct consular officers as to their official acts, but they are expected to inform consular officers of the defects which they have observed in the invoices of particular shippers, and consular officers should cooperate with them by declining to certify any invoices which do not conform to the law and regulations. Consular officers will also render to such customs representatives every assistance in their power in the performance of their duties, giving them free access to the records and papers of their consulates relating to trade with the United States; communicating to them promptly any information which may be acquired showing or indicating actual or contemplated frauds in the exportation of merchandise to the United States, or which may be in any wise useful to such representatives in the prosecution of their inquiries or the performance of their duties; and giving special attention to any invoices of merchandise in which, or in relation to which, such representatives may advise them that there is reason to apprehend that fraud or irregularity has been or is likely to be committed.

721. Special Regulations.—The Secretary of State will issue, from time to time, such instructions as may be necessary for the guidance of consular officers, concerning special regulations affecting goods or shipments of a particular kind.

722. Canceled.
723. Canceled.
724. Canceled.
725. Canceled.
726. Canceled.
727. Canceled.
728. Canceled.
729. Canceled.
730. Canceled.
731. Canceled.

CALVIN COOLIDGE

THE WHITE HOUSE,
July 3, 1928.

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